

TEXAS MULTIFAMILY · REFERENCE

Recovering Post-Eviction Balances

Unpaid rent, damages and fees after a tenant is gone — what recovers, and how, in Texas

An eviction ends the tenancy; it does not settle the balance. Unpaid rent, damage above the deposit, broken-lease penalties and holdover fees remain owed — and they are consumer debt, governed by the FDCPA and Regulation F. Recovering them after the tenant has vacated takes a different toolkit than in-house dunning.

What is recoverable

- Unpaid rent from current or former tenants
- Property damage charged above the security deposit
- Broken-lease penalties and early-termination balances
- Eviction balances and holdover fees
- Utility chargebacks, and (where applicable) HOA fees and assessments

The Texas framework

ITEM	WHAT IT MEANS FOR RECOVERY
Statute of limitations	Four years on this debt in Texas. It cannot be revived by a payment, so the window to pursue legal escalation is finite — place accounts early.
Judgments	A judgment, once obtained, is enforceable for ten years in Texas and can be renewed.
Credit reporting	Rental and eviction balances remain fully reportable to all three bureaus. The tradeline can stay up to seven years and follows the tenant to their next lease application.
Consumer protection	Residential tenant balances are FDCPA / Reg F debt: validation notice, a 30-day dispute window, contact limits and required disclosures apply on every account.

The levers that actually move post-eviction balances

- **Skip tracing.** Evicted tenants move; daily, Experian-powered tracing locates the right party when the lease contact data is stale.
- **Three-bureau credit reporting.** Unlike medical debt (now largely off credit reports), rental debt still reports — powerful, compliant leverage for a tenant who wants to rent again.
- **Workable payment plans.** More accounts resolve when there is a realistic path to zero.
- **Legal escalation.** For refusals, out-of-state movers and large balances, small-claims, civil court and judgment enforcement stay on the table — reviewed with you.

Compliance protects the landlord, too

Post-eviction recovery has to be firm and precisely compliant: validation notices, honored disputes, no threats, no harassment, no misrepresentation. Done right, it protects the former tenant, protects your reputation with future residents, and shields you from the liability that sloppy in-house collections can create. Southwest Recovery Services does not collect consumer debt in California, Oregon or Washington; for a Texas portfolio, that is a non-issue.

Turn eviction write-offs back into revenue

Send us a representative sample of your post-move-out ledger and we will show you exactly how we would work it — on contingency, with no upfront cost.

Call **(866) 551-4684** · sdietz@swrecovery.com · swrecovery.com

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